

G Suresh vs Jagdish on 12 December, 2024

KABC0A0020392019

IN THE COURT OF XIII ADDL. CITY CIVIL & SESSIONS JUDGE,
MAYOHALL UNIT, BENGALURU (CCH-22)
Present: Sri S. Gopalappa, B.A.L., LL.B.,
C/c IV ADDL. CITY CIVIL & SESSIONS JUDGE
BENGALURU. (CCH-21)

OS No.25782/2019

Dated this 12th day of December, 2024

Plaintiff:- Sri G. Suresh S/o Late Gundappa,
Aged about 37 years,
Residing at No.179/1,
Agara Village, Sarjapura Road,
Bengaluru-102.

(Rep. By - Sri A.V. Rajendra Babu, Advocate)
V/S

Defendant:- Mr. Jagadish S/o Thimmarayappa,
Aged about 36 years,
Residing at No.09,
Gadimuddanna Road,
Sri Ramnagar, Kamakshi Palya,
Bengaluru-79.

And also At:
No.52, Shivanapalya,
Kengeri Satellite Town,
Bengaluru-56.

(Rep. By - Sri A.R.K, Advocate)

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OS.No.25782/2019

Judgment

Date of Institution of the suit	13/06/2019
Nature of the Suit	Money Suit
Date of the commencement of recording of the Evidence.	13/09/2021
Date on which the Judgment was pronounced.	12/12/2024

Total duration	Year/s	Month/s	Day/s
	-05-	-05-	-29-

C/c IV ADDL.CITY CIVIL AND SESSIONS JUDGE,
MAYOHALL UNIT: BENGALURU.

JUDGMENT

The plaintiff has filed this suit against the defendant to direct the defendant to pay a sum of Rs.37,75,000/- and to direct the defendant to pay interest at the rate of 18% p.a on Rs.25,00,000/- from the date of suit till realisation, for costs and such other reliefs.

2. The brief facts of the plaintiff's case are as follows:-

Judgment The Plaintiff and the Defendant were having friendship from past several years. In the year 2016, the Defendant has approached the Plaintiff for financial help to come out of his financial crisis and make good of the same. The Defendant has requested the Plaintiff to lend a hand loan with the assurance that the same will be returned to the Plaintiff within a short period of time. Since the Defendant is known to the Plaintiff, the Plaintiff has provided financial help by way of Rs.30 lakhs through a RTGS on 08/08/2016 having RTGS No. UTRCORPF9201608081102005 to the account maintained by the Defendant in Syndicate Bank, Kangeri Satellite Branch, Bengaluru, from the account maintained by the Plaintiff in Corporation Bank, HSR Layout Branch, Bengaluru.

It is further submitted that after the receipt and settlement of his commitments, the Defendant has become isolated and he remained silent for about four months from the date of the receipt of the amount. In the month of January 2017, the Defendant voluntarily approached the Plaintiff and he has conveyed regarding the discharge of the said amount.

Judgment Towards the discharge of the said liability, the Defendant has issued two cheques bearing Nos.452416 and 452417 dated 11/01/2017 and 12/01/2017 for an amount of Rs.13 lakhs and 12 lakhs respectively drawn on Syndicate Bank, Kangeri Branch in favour of the Plaintiff with the promise that the cheques which are so issued would be duly honoured when same being presented through the Plaintiff Bank on the date mentioned in the cheques without fail. That believing the words of the Defendant, the Plaintiff had presented the said cheques through his Bank i.e. Corporation Bank, HSR Layout, Bengaluru, but on 13/01/2017 to the shock and surprise of the Plaintiff, the cheques issued by the Defendant were returned dishonoured along with bank memo stating reasons "funds insufficient". The Defendant utterly failed to fulfill his promises by not maintaining sufficient amount to honour the said cheques towards the discharge of his liability in favour of the Plaintiff.

It is further submitted that, the Plaintiff has brought to the notice of the Defendant regarding the dishonour of the Judgment cheques. The Defendant has requested the

Plaintiff not to initiate any legal action for dishonour of the cheques and also requested the Plaintiff to wait for some time so that the Defendant will repay the said amount. Believing the words of the Defendant, the Plaintiff waited for some time. When the Defendant has failed to make any payment, the Plaintiff has requested several times to make the payment. After several requests, the Defendant has paid an amount of Rs.5 lakhs through RTGS on 05/07/2017 out of Rs.30 lakhs to the Plaintiff through Lakshmi Vilas Bank Ltd., and the Defendant further requested some more time to pay the remaining amount of Rs.5 lakhs to the Plaintiff. Believing the words of the Defendant, the Plaintiff waited patiently for a period of 1½ years and whenever the Plaintiff tried to contact the Defendant, the Defendant was avoiding the Plaintiff by saying one or the other reason.

It is further submitted that, without any alternative after waiting for 1½ years, on 18/02/2019 the Plaintiff has got issued a legal notice by demanding the Defendant to pay the Judgment amount of Rs.25 lakhs within 15 days from the date of receipt of the notice, and the said notice was duly served on the Defendant on 23/02/2019. After service of the notice, the Defendant has approached the Plaintiff personally and requested to accommodate three months time to pay the said amount of Rs.25 lakhs. After completion of three months, the Defendant utterly failed to keep up his promise by not paying the said amount. As on the day, the Defendant has not at all made any payment towards the due discharge of his liability towards the issuance of above said cheques in favour of the Plaintiff by the Defendant.

It is further submitted that the Defendant has to pay principal amount of Rs.25,00,000 along with interest at rate of 18% per annum from 08/08/2006 to till date of due discharge the Defendant is liable to pay sum of Rs.37,75,000/-. Hence the suit.

3. The defendant has filed objections denying the allegations of the plaintiff. He has further submitted that the Judgment plaintiff has not just suppressed the material facts, but also has willfully made out a false case with the sole intention of misleading this Court into passing a Judgment and Decree favorable to him. The plaintiff is undervalued and the Court Fee paid on the plaint is deficit. The plaintiff does not disclose any cause of action and the plaintiff has no cause of action whatsoever. The suit filed by the plaintiff is barred by law and limitation. The averment made by the plaintiff to the effect that the plaintiff and the defendant were friends from the past several years is absolutely false. The said averment is made solely for the purpose of the Suit. The defendant does not know the plaintiff and that the plaintiff is a total stranger to the defendant. The brother of the plaintiff, Sri Anand @ Babu, who is involved in the business of real estate, approached the defendant in 2016 being desirous of purchasing the land bearing Site No.1122/E, which is of Sector-3, was owned by Smt. Akkayamma, who is none other than the grandmother of the defendant, and the same was transferred in favor of the defendant by way of a gift.

Judgment It is further submitted that, the BDA had issued a notice calling upon Smt. Akkayamma to cooperate with the cancellation of the Sale Deed with respect to the said land in the year 2013. When

the defendant informed the brother of the plaintiff, Sri Anand, that the BDA had issued the said notice, the said Anand informed the defendant that he would get the issue sorted. That Anand @ Babu met the defendant on 08/08/2016 and got a sum of Rs.30 lakhs transferred to his account with instructions to the effect that one Sri Puttaswamy, the person who would follow up with the BDA, would get in touch with him on the next day and that he was required to hold a sum of Rs.5 lakhs as earnest money and transfer the remaining sum of Rs.25 lakhs to the said Puttaswamy. At that time, Anand also collected two cheques from the defendant for the purpose of ensuring that the money would be transferred to Puttaswamy as instructed. That as instructed, he withheld a sum of Rs.5 lakhs and transferred the remaining sum of Rs.25 lakhs in favour of Puttaswamy. Upon further discussion with the agent, Puttaswamy, the defendant learnt that Anand and Judgment Puttaswamy were planning and attempting to bribe the officials for the purpose of sorting out the issues with respect to the opposite land. Puttaswamy had assured the parties to the above suit that he would resolve the issue within a period of three months and the brother of the plaintiff had collected a few cheques from Puttaswamy for the purpose of security. Having regard to the above, the averment in the plaintiff stating that the defendant approached the plaintiff for financial help for the purpose of coming out of a financial crisis is absolutely false. The vague and self-serving matter in which the said awareness is made demonstrates that the same is false and is made solely for the purpose of the suit.

It is further submitted that in view of the facts narrated above, the averments to the effect that he approached the plaintiff voluntarily and handed over the two cheques described in the plaint with an assurance that the same would be honoured upon presentation is false. That even after the lapse of three months, there was no progress in the matter. As such, the brother of the plaintiff approached the defendant and Judgment called upon to return the earnest money. In view of the lack of funds, the defendant sought for some time. Therefore, Anand @ Babu got the cheques presented and informed the defendant about the dishonour of the same. Anand further blackmailed the defendant stating that he would not proceed against him if he extended his cooperation towards the legal steps he intends to take against Puttaswamy and return the earnest money advanced by him. The defendant, under the threat of false prosecution, agreed to extend the necessary cooperation and returned the earnest money of Rs.5 lakhs in due course. That the plaintiff caused the said cheques issued by the said Puttaswamy dishonoured and got issued a statutory notice and filed a Complaint U/s 138 of the N.I Act. The defendant was required to attend the Court whenever called for and he had no other role to play in the matter whatsoever.

It is further submitted that, even the documents pertaining to the said case were not made available to the defendant. The said Complaint was disposed of with conviction of the accused and yet no amount could be recovered by the Judgment brother of the plaintiff. Having regarded the same with a dishonoured and malafide intention of gaining back the said unreported black money at the cost of the defendant, Anand @ Babu set up the plaintiff for the purpose of extracting the money lost in a legal exercise from the defendant and got a false notice issued. The defendant could not cause a reply to be issued against the same, as much as he misplaced the said notice issued by the plaintiff.

It is further submitted that the averments made in the complaint to the effect that the defendant requested the plaintiff not to initiate legal proceedings for dishonor and called upon the latter to

wait is denied as false. The case of the plaintiff to the effect that he forfeited his right to initiate proceedings under Section 138 of the N.I. Act and waited for one and half years without even issuing a legal notice is an unbelievable story put up for the sole purpose of the above suit is false. It goes entirely opposite to the natural conduct of an average man, especially when huge sums of money is involved. It is also denied that a transfer of Rs.5 lakhs was made by the defendant towards Judgment part payment of the alleged debt. The averment made in plaint to the effect that he had requested the plaintiff to give him three months time after issuance of notice dated 23/02/2019 is false. Hence, the defendant prays to dismiss the suit.

4. In the result of the pleadings, my learned Predecessor in office has framed the following issues;

1. Whether the plaintiff proves that, on 08/08/2016 he provided financial assistance of Rs.30,00,000/- to defendant?

2. Whether the plaintiff proves that, defendant has issued cheque dt:

11/01/2017 and 12/01/2017 in his favor for a sum of Rs.13,00,000/- and Rs.12,00,000/- respectively towards the discharge of his liability?

3. Whether the plaintiff is entitled to recover Rs.25,00,000/- with interest at the rate of 18% per annum?

4. What order or decree?

Judgment

5. In support of plaintiff's case the plaintiff is examined as PW.1 and Ex.P1 to 21 are marked and closed his side of evidence.

6. In support of defendant's case defendant is examined as DW.1 and Ex.D1 to 3 are marked and closed his side of evidence.

7. Heard arguments and perused the records.

8. My findings on the above issues are as under:-

Issue No.1	:	In the Affirmative
Issue No.2	:	In the Affirmative
Issue No.3	:	Partly in the Affirmative
Issue No.4	:	As per the final Order -for the following:

REASONS

9. Issue Nos.1:- The plaintiff who is examined as

PW-1 has reiterated the facts stated in the plaint. In the cross- examination, PW-1 has deposed that, his elder brother Anand is doing Real Estate Business. He has no transactions in BDA.

Judgment He is paying Income Tax. The defendant has borrowed loan from him, promising to return the money within six months. After six months, he has not issued any Notice to the defendant, because before that the defendant handed over two Cheques of Rs.13 lakhs and 12 lakhs. At that time, there was no impediment for him to enter into an agreement. He does not know the father and mother's name of the defendant. The defendant is doing Real Estate business. The defendant is having Real Estate Office in Kangeri. But he does not know the complete address. He does not know the qualification of the defendant. He was talking to the defendant through the mobile phone of his elder brother. The defendant has handed over cheques of Rs.13 lakhs and 12 lakhs and assured to pay Rs.5 lakhs. There was no impediment for him to get a cheque of Rs.30 lakhs from the defendant.

10. Further, PW1 has deposed that he has not filed any Criminal Case against the defendant for dishonour of cheque, because when he informed the defendant, the defendant requested for four months time. Therefore, he has not filed the Judgment Criminal Case. After four months, he has not issued any Notice or Letter to the defendant. He has no photo to show that himself and defendants are friends. His elder brother Anand @ Babu is doing Real Estate business since four years in getting the houses for rent. He does not know that BDA had granted a site in favour of grandmother of the defendant in HSR layout bearing No.1122/E and had informed that they will cancel the allotment and will re-allot the site through a Notice. PW-1 does not know that the defendant brought the said Notice through his elder brother Anand and requested for solution.

11. PW-1 denies that his elder brother Anand assured to look after all the transactions. He does not know that his elder brother Anand introduced one Puttaswamy who was working as a broker in BDA and asked the defendant to take his help. He does not know that, at that time his elder brother Anand, himself agreed to pay Rs.25 lakhs to Puttaswamy. He does not know that, the elder brother Anand gave advance amount of Rs.5 lakhs to the defendant. He denies that because of that reason his elder brother Anand transferred Rs.30 lakhs Judgment to the defendant's bank from the bank account of PW-1. PW1 has voluntarily deposed that, he transferred the amount as a loan to the defendant. He does not know that after money was transferred to the bank account of the defendant, the defendant gave a sum of Rs.25 lakhs to Puttaswamy.

12. Further PW-1 has deposed that, at the request of Anand, he transferred a sum of Rs.25 lakhs to the defendant. He denies that on 09/08/2016, the defendant gave a cash of Rs.9 lakhs to Puttaswamy. He does not know that as instructed by Anand, the defendant has transferred a sum of Rs.7 lakhs on 10/08/2016 to Puttaswamy. He does not know that, similarly on 10/08/2016 at the instructions of Anand, the defendant gave a cheque of Rs.9 lakhs to Puttaswamy. He doesn't know that at the instructions of Anand, Jagdish has paid a sum of Rs.25 lakhs to Puttaswamy. PW-1 has deposed that the defendant requested him to pay Rs.30 lakhs and as recommended by his elder brother Anand, he transferred money to the defendant. PW-1 has deposed that during January 2017, the defendant has gave two cheques for Rs.12 Judgment lakhs and Rs.13 lakhs. He denies that he does not know who is the defendant. He has denied that, the defendant has filed a Cheque Case

against Puttaswamy. He denies that when the money was transferred to the bank account of the defendant, Anand had obtained one cheque. PW-1 has voluntarily deposed that 6 months after the money was transferred, the defendant handed over the cheques directly to him. He does not know when the defendant transferred money to the bank account of Puttaswamy, and Anand had obtained a cheque from Puttaswamy. He does not know that Anand demanded Puttaswamy to return Rs.25 lakhs stating that BDA work was not done. He does not know that through defendant Anand has filed a Cheque bounce case against Puttaswamy. He does not know that said Anand was looking after the said case. He denies that in the said case the Judgment was passed in favour of the defendant. Therefore, at the instigation of this Anand, he has filed this false case against the defendant. He denies that since the earlier case was pending, he had not filed a case. During the period 2016-2019, the defendant had not Judgment telephoned to him, but he was personally talking to him. Sometimes he was talking through his brother's mobile phone. He came to know the defendant through his elder brother. Further, PW1 has denied rest of the suggestions made by learned counsel for the defendant.

13. The defendant is examined as DW-1 and has reiterated the facts pleaded in his written statement. In the cross-examination, DW-1 admits that on 18/08/2016 a sum of Rs.30 lakhs was transferred to his bank account from the bank account of the plaintiff. DW-1 has voluntarily deposed that. That at the instruction of his elder brother Anand, the plaintiff has transferred the money from his bank account. DW-1 has deposed that out of Rs.30 lakhs, at the instruction of Anand, he has paid Rs.25 lakhs to Puttaswamy. At the instruction of Anand, he has paid Rs.5 lakhs through Cheque to the plaintiff. He has no documents to show that, Anand asked him to pay Rs.25 lakhs to Puttaswamy and to pay Rs.5 lakhs to the plaintiff. DW1 has deposed that in respect of transfer of Rs.25 lakhs to the bank account of Puttaswamy, Puttaswamy gave Judgment cheques to him. He has those cheques with him and can produce the same before the court.

14. Further, DW-1 has deposed that since the cheques given by Puttaswamy were dishonoured, he has taken legal action by filing case. DW-1 has voluntarily deposed that Anand instructed him to file the case. In the said cheque bounce case, Judgment is passed in his favour and the Court, directed Puttaswamy to pay a sum of Rs.27 lakhs to him. He has not referred anywhere in the Criminal Case that at the instructions of Anand, he has paid money to Puttaswamy. As ordered in the Criminal Case, he has not received Rs.25 lakhs, but Anand informed that, a sum of Rs.6,50,000/- is credited. In the Criminal Case filed against Puttaswamy, he has filed the chief examination and documents.

15. Further, DW-1 has deposed that, as per the copy of the Sale Deed Ex.D1, BDA gave the property to his grandmother, Smt. Akkayamma. His grandmother has executed the property in his favour as per Ex.D2. Thereafter, he Judgment has sold the said property in 2017 or 2018 in favour of one Mohan. He can produce the said sale deed before the Court. Since there was no objection from BDA in respect of the property mentioned in Es.D1 and D2, he has sold the property to Mohan. In the check bounce case, he had pleaded that Puttaswamy has borrowed a sum of Rs.25 lakhs from him. DW-1 has voluntarily deposed that, at the instructions of Anand, he had pleaded the same. DW-1 has denied that Anand has no role in the said transaction and in order to escape from the liability, he is deposing falsely. DW-1 admits that the plaintiff has transferred money to his bank account stating that he will purchase the property mentioned in Ex.D1 and D2.

16. DW-1 has identified that Certified Copy of Private Complaint No.6461/2017 as per Ex.P10, the Sworn Statement Ex.P11, Copies of Cheques Ex.P12 to 14, the Copy of Bank Endorsement Ex.P15, Certified Copy of Notice Ex.P16, Certified Copy of Postal Receipt and Acknowledgment Ex.P17 and 18, Judgment Certified Copy of Plea Form Ex.P19, Certified Copy of the Judgment Ex.P20 and Certified Copy of Order Sheet Ex.P21.

17. Further, for the suggestion that, Puttaswamy in order to repay the money had given three cheques in total Rs.25 lakhs. DW-1 has deposed that, Anand had given money to Puttaswamy. Therefore, for Rs.25 lakhs, he has given cheques for Rs.27 lakhs. DW1 has deposed that he has not withdrawn Rs.6,25,000/- deposited to the Court. Puttaswamy was working as Deputy Secretary. Now he is retired and he does not know where he is working. He does not know the source of income of Puttaswamy. He does not know whether Puttaswamy had filed any appeal or not. He has not received any notice of appeal. He does not know that Puttaswamy has filed Criminal Appeal No.1053/2018 against the Judgment. He does not know that in the said the appeal, Puttaswamy has deposited a sum of Rs.6,25,000/- and therefore he was released from jail. He has not taken further steps against Puttaswamy. He denies that colluding with Puttaswamy in Judgment order to escape from liability, he has concocted a false story and deposing falsely.

18. Further, DW-1 has deposed that he is B.Sc., Graduate and earlier he was doing Transport Business. He has rented houses for his livelihood. He has notice issued by BDA to his grandmother and he can produce the same before the Court. He admits that according to Ex.D2, a Gift Deed was executed by his grandmother. After the Gift Deed, in the year 2018 and 2019, he has sold the property to Mohan for Rs.2 Crores. BDA had raised objections stating that the property allotted to his grandmother is park area. Therefore, will cancel the same and will allot alternate site.

19. Further defendant has deposed that, but BDA has directly executed a Sale Deed in his favour. Because before the BDA allotting site his grandmother has executed a gift deed in his favour. Therefore, after execution of the Sale Deed from BDA, he has sold the property to Mohan. The property sold to Mohan is not the property mentioned in Ex.D1 and D2. He has Judgment paid a sum of Rs.3 lakhs to BDA for cancellation of allotment in favour of his grandmother and for allotment of alternative site in his favour. Except this Rs.3 lakhs, he has not paid any money to BDA. A sum of Rs.30 lakhs was deposited to his bank account, from the bank account of plaintiff on 08/08/2016. He admits that on 05/07/2017, out of Rs.30 lakhs, he has transferred a sum of Rs.5 lakhs to the bank account of the plaintiff. For cancellation of allotment in favour of his grandmother and allotment of alternative property in his favour, he has not given any bribe in BDA. He can examine Anand @ Babu as a witness. He admits that, after the cheques given by him in favour of the plaintiff, notice was given to him and he has not replied to the said Notice. DW-1 has voluntarily deposed that he had given cheques to Anand and not to the plaintiff. He admits that, the two cheques are pertaining to his bank account, one cheque of Rs.13 lakhs and another cheque of Rs.12 lakhs. The said the cheques were dishonoured with endorsement insufficient funds. DW-1 has deposed that a sum of Rs.13 lakhs was transferred to his bank account from the Judgment bank account of the plaintiff. DW-1 has voluntarily deposed that, out of the said amount, he handed over a cheque of Rs.5 lakhs in the name of plaintiff to Anand. The said sum of Rs.5 lakhs was deposited to the bank account of the plaintiff. If Puttaswamy is arrested in CC.No.15449/2017, he will get the

money. Further, DW-1 has denied rest of the suggestions made by the learned Counsel for the plaintiff.

20. DW-1 admits that on 18/08/2016, from the bank account of the plaintiff, a sum of Rs.30 lakhs was transferred to his bank account. The account statement Ex.P1 also shows that on 08/08/2016, a sum of Rs.30 lakhs was debited from the account of the plaintiff. The defendant has not produced any documents to show that, BDA issued a Notice to Smt. Akkayamma, his grandmother, calling upon her to co-operate with the cancellation of the Sale Deed with respect to the said land in the year 2013.

21. According to the defendant, he has shown the said notice to Anand and in turn, Anand informed him that he will Judgment sort out the issue and therefore on 08/08/2016, Anand @ Babu met him and got a sum of Rs.30 lakhs transferred to his account with instructions to the effect that Sri Puttaswamy the person would follow up the matter in BDA and would get in touch with him. The defendant has further deposed that, he was required to hold a sum of Rs.5 lakhs as earnest money and transfer the remaining sum of Rs.25 lakhs to Puttaswamy.

22. But in the cross-examination, DW-1 admits that the plaintiff has paid a sum of Rs.30 lakhs stating that he will purchase the property. This admission given by DW-1 falsifies his contention that the plaintiff and Anand gave a sum of Rs.30 lakhs to him to give bribe in BDA.

23. It is clearly mentioned in the copy of the Sale Deed Ex.D1 that, the property belonging to Smt. Akkayamma was acquired by BDA for the purpose of formation of road without any notification, therefore, BDA is liable to give alternative property to the extent of 50%. Therefore, BDA executed a Sale Deed in favour of Akkayamma in respect of property No.1122/ Judgment E measuring East-West 15.25 meters and North-South 24.40 meters.

24. This Sale Deed was executed on 27/03/2013. In turn, Akkayamma executed a Gift Deed in favour of the defendant on 02/08/2013. The money transferred from the plaintiff's bank account to the defendant's bank account was on 08/08/2016. The defendant has not produced any proceedings of BDA to show that the acquisition proceedings was started in year 2016.

25. The Certified Copy of the Judgment Ex.P20 shows that in CC.No.15449/2017, the defendant filed a case against Puttaswamy V U/s 138 of N.I Act, stating that during the 1 st week of July 2016, Puttaswamy approached him to give a sum of Rs.25 lakhs for the purpose of land and for his personal commitment and assured him to repay the same within one year. The defendant has not stated in the said case that at the instructions of Ananda, he has paid a sum of Rs.25 lakhs to Puttaswamy. It is also not stated in the said case that the Judgment cheques were dishonoured. Therefore, according to the instructions of Ananda, he has filed a case U/s 138 of the N.I. Act.

26. The Defendant has filed the private complaint independently against Puttaswamy for dishonor of cheques for the reason funds insufficient. Within stipulated period, Defendant issued a notice to Puttaswamy and the same was received by him. It was held by the said court that the Complainant by producing convincing Evidence has proved his case beyond reasonable doubt. Therefore, the

court found that Puttaswamy is guilty for the offence punishable U/Sec. 138 of NI Act and sentenced to pay a fine of Rs. 27,00,000/- and in default to undergo SI for the period of 12 months.

27. According to the defendant the plaintiff paid Rs.30 lakhs to him to give bribe in BDA, then he transferred Rs.25 lakhs to Puttaswamy, to repay that amount Puttaswamy issued cheque. It was bounced, therefore defendant filed case U/s 138 of N.I Act and got conviction. But in the present case Judgment for the same amount the defendant takes contention that plaintiff gave Rs.30 lakhs to him to give bribe in BDA. This contention of the defendant cannot be accepted.

28. The accounts ledger extract shows that on 08/08/2016 a sum of Rs.30,00,000/- was debited from the account of Plaintiff. As on 19/04/2017, a sum of Rs.5,00,000/- was credited to the account of plaintiff. DW-1 has admitted in his cross-examination that as on 18/08/2016 a sum of Rs.30,00,000/- was credited to his bank account from the Bank account of Plaintiff. DW-1 has deposed that, he has repaid Rs.5,00,000/- to the Plaintiff. As discussed above, the Defendant has not produced any documents on record to show that the BDA has issued a notice to Akkayamma stating that, the property allotted to Akkayamma is park area therefore, because of objections, the allotment has to be canceled and thereafter, BDA directly executed the Registered Sale Deed in favour of Defendant.

Judgment

29. DW-1 has deposed that, BDA has canceled the allotment made in favour of Akkayamma and given the alternative site to him executing the Sale Deed in his favour. According to DW-1, for this the Defendant has paid Rs.3,00,000/- to BDA. The copy of Sale Deed Ex.D1 is executed by BDA in favour of Akkayamma, but not in favour of Defendant. Apart from that according to this document a free site was allotted to Akkayamma and only a sum of Rs.2,000/- was paid towards Registration Fee. Therefore, this contention of DW-1 that he has paid Rs.3,00,000/- to BDA to execute the Sale Deed in his favour is not supported by Sale Deed Ex.D1.

30. If the Defendant himself was able to pay Rs.3,00,000/- to BDA to get the Sale Deed executed then there was no occasion for the Defendant to approach Ananda @ Babu to deal with BDA on his behalf.

31. As discussed above, out of Rs.30,00,000/- the Defendant has repaid Rs.5,00,000/- to the Plaintiff through online transfer. For the remaining amount of Rs. 25,00,000/-

Judgment the Defendant has issued a cheque dt: 11/12/2017 as per Ex.P4 and another cheque for Rs.12,00,000/- dt: 12/12/2017 as per Ex.P6. The cheques were presented, and they were dishonored.

32. These facts strengthens the contention of Plaintiff that the Defendant approached the Plaintiff with a request to provide financial help by paying an amount of Rs.30,00,000/-. The said amount of Rs.30,00,000/- was transferred to account of Defendant through RTGS dt: 08/08/2016. As agreed upon by the Defendant, he has only repaid Rs.5,00,000/- to the Plaintiff and issued two cheques as

per Ex.P4 and 6 for repayment of Rs.25,00,000/-. The Plaintiff presented the said cheques for collection, but they were dishonored for the reason funds insufficient.

33. According to the Plaintiff the Defendant requested him not to take any legal action and asked him to wait for some more time and the Defendant will pay the amount. When the Defendant failed to pay the remaining amount, the Plaintiff Judgment got issued lawyer's notice as per Ex.P8 calling upon the Defendant to pay Rs.25,00,000/- along with interest at the rate of 18% p.a. as per the acknowledgment Ex.P8(c) the Notice is served on Defendant. But the Defendant has failed to pay demanded amount to the Plaintiff.

34. As discussed above, the Defendant has not produced any documents to show that the BDA issued a notice to his grandmother. On the other hand, DW-1 has admitted that the Plaintiff has paid a sum of Rs.30,00,000/- to the Defendant in order to purchase the property. DW-1 admits that from the bank account of Plaintiff a sum of Rs.30,00,000/- was transferred to his bank account on 08/08/2016 and on 05/07/2017 a sum of Rs.5,00,000/- was transferred from his account to the account of Plaintiff. These facts falsify the contention of Defendant that in order to bribe the BDA officials, the amount was paid and therefore, the Plaintiff is not entitled to recover the money.

Judgment

35. On the other hand, the transactions made by Plaintiff and Defendant clearly show that, on 08/08/2016 the Plaintiff paid a sum of Rs.30,00,000/- to the Defendant and it is legally recoverable debt. Out of the said amount the Defendant has already paid Rs.5,00,000/- to the Plaintiff. For the payment of remaining amount of Rs.25,00,000/- on 11/01/2017 and 12/01/2017 the Defendant has issued two cheques for a sum of Rs.13,00,000/- and Rs.12,00,000/- respectively towards discharge of liability. Hence, I answer Issue Nos.1 and 2 in the Affirmative.

36. Issue No.3:- The Plaintiff has proved that the Defendant is due to pay a sum of Rs.25,00,000/- to him but there is no contract between the Plaintiff and Defendant to pay the interest at the rate of 18% p.a. But the Defendant from 2017 has failed to return the money to the Plaintiff. Therefore, I hold that it is reasonable to award interest at the rate of 6% p.a. on Rs.25,00,000/- from the date of suit till the date of realization of the entire amount. Hence, I answer this Issue No.3, partly in the Affirmative.

Judgment

37. Issue No. :- For the reasons discussed above, I proceed to pass the following:

ORDER The suit of the Plaintiff is decreed, with costs.

The Defendant shall pay a sum of Rs.25,00,000/- to the Plaintiff with future interest at the rate of 6% p.a from the date of suit, till the date of realization of the entire amount.

Draw decree accordingly.

[Dictated to the Stenographer, after his transcription, corrected, signed and then pronounced by me in the open Court on this the 12th day of December, 2024].

(Sri. S. Gopalappa) C/c IV ADDL.CITY CIVIL AND SESSIONS JUDGE, MAYOHALL UNIT; BANGALORE.

--ANNEXURE:--

WITNESS EXAMINED FOR PLAINTIFFS:

P.W.1 : Sri G. Suresh S/o Late Gundappa

DOCUMENTS MARKED FOR PLAINTIFFS:

Judgment

Ex.P1to3 : Account Statement issued by Corporation Bank
Ex.P4 : Original Cheque dt: 11/01/2017
Ex.P5 : Return Memo
Ex.P6 : Original Cheque dt: 12/01/2017
Ex.P7 : Return Memo
Ex.P8 : Legal notice dt: 18/02/2019
Ex.P8(a) : Postal Receipts
&(b)
Ex.P8(c) : Postal Acknowledgment
Ex.P9 : Unserved RPAD envelope
Ex.P10 : Copy of the Complaint against Puttaswamy
Ex.P11 : Sworn statement

Ex.P12to14 : Certified copy of Cheques-3 Ex.P15 : Document issued by Bank Ex.P16 : Certified copy of Notice Ex.P17&18 : Certified copy of receipt and acknowledgment
Ex.P19 : Certified copy of plea Ex.P20 : Certified copy of Judgement Ex.P21 : Certified copy of Order Sheet [[Judgment WITNESS EXAMINED FOR DEFENDANTS:

DW.1 : Jagadeesh S/o Late Thimmarayappa DOCUMENT MARKED FOR DEFENDANTS: Ex.D1 : Certified copy of Sale Deed dt: 27/03/2013 Ex.D2 : Digitally signed certified copy of Gift Deed dt:

02/08/2013 Ex.D3 : Bank account statement C/c IV ADDL.CITY CIVIL AND SESSIONS JUDGE MAYOHALL UNIT; BANGALORE.